Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsection 41A(2)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (Closures) DIRECTION No. 3 2012

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate under delegation No. 1 of 2011 made on 28th January 2011 from the Commission, make the following Direction under subsection 41A(2) of the *Fisheries Management Act 1991*.

Dated: 29 March 2012

James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No.3 2012*.

Commencement

2. This Direction commences seven days after it is registered on the Federal Register of Legislative Instruments.

Cessation

3. This Direction ceases on 23 August 2013, unless earlier revoked.

To whom this Direction applies

4. This Direction applies to a holder, in the Southern and Eastern Scalefish and Shark Fishery, of:

(a) a Gillnet Boat Statutory Fishing Right; and/or

(b) a South Australian Coastal Waters Permit

and to a person acting on behalf of the holder.

[**Note**: This means that the Direction does not apply to a person if the person is fishing in the area of the Fishery in accordance with a fishing concession that is subject to another plan of management in force under the Act, under a scientific permit, a permit issued in another fishery, or under a licence issued under a law of a State or Territory.]

Interpretation

5. A term used in this Direction that is defined in the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003* (the Management Plan) has the same meaning in this Direction as it has in the Management Plan.

Direction not to engage in fishing

6. Fishing by gillnet methods is not to be engaged in in the areas of waters of the Southern and Eastern Scalefish and Shark Fishery described in Schedule 1.

Interaction with other legislative instruments

7. For the avoidance of doubt:

This Direction does not affect any other Direction made under s41A of the *Fisheries Management Act 1991* (the Management Act), or, prior to the commencement of the *Fisheries Legislation Amendment Act (No. 2) 2010*, under former section 17(5A) of the Management Act and section 56 of the Management Plan, which directions continue in force according to their terms.

Schedule 1

Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 3 2012.

Fishing by gillnet methods is not to be engaged in in the following area:

Australian Sea Lion Management Strategy Adaptive Management Zone D

The area of the Australian Sea Lion Management Strategy Adaptive Management Zone D is the part of the Australian Fishing Zone and coastal waters of the State of South Australia contained within and bounded by a line:

(a) commencing at the intersection of the mean low water line of the southern coastline of South Australia at the point 33º 43' 34" south by 135º 00' 00" east;

(b) then generally south-westerly to point 34º 59'24" south 134º 00'00" east then generally south-easterly along the geodesics sequentially connecting the following points;

Point	Latitude	Longitude
i.	35º 03' 23" south	134º 14' 06" east
ii.	35º 31' 35" south	135º 02' 56" east
iii.	35º 38' 24" south	135º 17' 06" east
iv..	35º 36' 57" south	135º 21' 36" east
v.	35º 41' 47" south	135º 24' 47" east
vi.	35º 53' 25" south	135º 44' 41" east
vii.	35º 59' 58" south	135º 45' 12" east
viii.	36º 02'53" south	135º 48'00"east

(c) then north to the point 34º 58' 20" south by 135° 48' 00" east,; and

(d) then generally north-westerly along the mean low water line of the southern coastline of South Australia to the point of commencement.